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California moves to curb ultraprocessed foods in school cafeterias

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You don't have to look far to find scathing indictments of the ultraprocessed food industry. These high-fat, high-salt, high-sugar products — think fast food, prepackaged meals, convenience store snacks — have been linked to more than 30 adverse health outcomes, from heart disease and diabetes to mental health conditions and dementia.

They're also ever-present in the lives of California schoolchildren. Schools have long relied on processed foods such as frozen pizza, chicken nuggets and chips as part of their standard cafeteria servings, even as many districts have begun to embrace healthier options.

The trend toward better choices for kids may have just received a huge boost. A bill headed for Gov. Gavin Newsom's desk would kick-start a move toward ridding California school cafeterias of the most harmful sorts of ultraprocessed foods.

Assuming it's signed by Newsom, who in January issued an executive order to crack down on such foods, the law will provide what its supporters believe is the first statutory definition in the nation for UPFs, as ultraprocessed foods are known. In so doing, California could provide a template for other states to follow — one reason why this bill sparked intense lobbying by national food companies and state producers alike.

"Given that California is projected to serve over a billion school meals this [academic] year, working at this through the schools felt like a very powerful way to address the issue and hopefully help a lot of kids," said California Assemblymember Jesse Gabriel (D-Encino), who carried the bill.

It has the chance to do something else, too. By gradually phasing out the worst ultraprocessed foods from its schools, California may take a genuine step toward improving the health of many of its most disadvantaged young people — the kids who often rely on school meals for their nutrition in the first place.

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Gabriel's bill defines ultraprocessed foods as those high in saturated fat, sugar or sodium, as well as those using nonsugar sweeteners. Such foods also contain one or more of certain industrial ingredients, such as colors (or dyes), flavors, emulsifiers and thickening agents — basically, the stuff that comprises much of the fast food and quick-snack options on the market.

"Foods served in schools should fuel kids' bodies and brains for learning, but harmful ultraprocessed foods do the opposite," Brian Ronholm, director of food policy at Consumer Reports, one of the co-sponsors of the bill, said in a statement Sept. 12. "They offer little nutritional value and are deliberately engineered to make them hard to resist, which encourages unhealthy eating habits and overconsumption."

Those kinds of foods are common everywhere. Any short list of ultraprocessed food includes chips and packaged snacks, ice cream, soda, packaged meat, canned soup, breakfast bars, energy drinks — a fair amount of what's sold in grocery and convenience stores. And they're snapped up by a buying public that wants something quick to eat, despite there not being much actual food in those products.

Recent data indicates that U.S. adults consume more than half their calories from such junk food. For kids 18 and younger, the figure rises to nearly 62%. The federal Centers for Disease Control and Prevention says ultraprocessed

foods "tend to be hyperpalatable, energy-dense, low in dietary fiber, and contain little or no whole foods" — unfortunately, a recipe for success in the U.S. market.

For Gabriel and other supporters of the bill, one of the challenges was to write a school law that went after the worst ultraprocessed foods without inadvertently wiping out more benign entries in a similar category. "There was debate at the beginning, for example, about things like the wax that's put on apples [to preserve freshness and extend shelf life]," Gabriel said. "We don't want to write this bill in a way that people aren't serving apples in our schools, right? So that kind of thinking became a part of the process."

Concerns were also raised by state growers' associations and large-scale food manufacturers, some of which were worried that California's definition of ultraprocessed food would be adopted by other states before the producers had a chance to either change their products or prepare for them to be removed from school menus. The estimated cost to the state is relatively minimal — roughly $3 million a year in added staff to perform research and rulemaking functions — but food companies would likely have to spend in order to reformulate their offerings away from ultraprocessed ingredients.

The result is an amended bill that charges the California Department of Public Health with ultimately crafting a list of "UPFs of concern," based on several factors. Those include whether the product includes a substance that is banned or subject to warnings in the U.S. or elsewhere, whether it's linked to any of a variety of adverse health outcomes and whether it "may contribute to food addiction."

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If it's signed by Newsom, the law won't take effect until Dec. 31, 2027, and it provides for a gradual phase-in through 2035. It sailed through the California Assembly and Senate with near-unanimous bipartisan support.

"That doesn't happen very much these days," Gabriel said. "But we have been able to coalesce people around a bipartisan common-sense idea, which is that we shouldn't be feeding our kids foods that are going to interfere with their physical or mental health or their ability to learn."

A long-term improvement in statewide school nutrition could be especially important in poorer school districts and lower-income neighborhoods, where ultraprocessed foods are often the choice because they're everywhere — and fresh, healthy food is harder to find or more expensive.

"One hundred percent," Gabriel said when asked whether the equity component factored into his interest in carrying the bill. "It was a big part of the conversation initially. You think about who relies on school lunches and school breakfasts — it tends to be kids from lower-income households and more disadvantaged communities and under-resourced communities."

Though the law applies everywhere, its effect in disadvantaged communities could be profound. A 2023 study by researchers at the UCLA David Geffen School of Medicine drew a link between the lower-quality food prevalent in such neighborhoods and a disruption in the brain's ability to process certain types of information.

In the sprawling Los Angeles Unified School District, more than 80% of students qualify for free or reduced-cost school meals. What they eat matters to their health, for a multitude of reasons. Shelving the worst ultraprocessed foods in public school cafeterias may prove to be a step toward improving that equation.

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